MIRIAM SARAI
versus
TIMOTHY CHATIKOBO
and
MASTER OF THE HIGH COURT N.O

HIGH COURT OF ZIMBABWE
MHURI J
HARARE;18 February & 26 February 2026

Opposed Application

B Furidzo with *T Marume*, for applicant
M.M Sibanda, for 1st respondent
No appearance for 2nd respondent

MHURI J: This is an opposed application for the removal of the first respondent as the executor of the estate of the late GARIRAYI CHATIKOBO (DR 2593124). The applicant seeks an order in the following terms:

> "l. The first Respondent be and is removed as the executor of the estate of the late GARIRAYI CHATIKOBO (2593/24).
>
> 2. The second Respondent shall as soon as practically possible take the necessary steps to have an independent/neutral executor appointed.
>
> 3. The second Respondent pays the costs of this application."

In brief, the background facts to the application are that the late Garirayi Chatikobo died intestate on 20 August 2002. On 17 October 2024, the first respondent was appointed executor dative by the second respondent with the agreement of the family members, including applicant. There is one property belonging to the deceased, being farm 1335 Wilshire registered under Grant No. 4984/92. The first respondent did not finalize the estate which led to a letter being sent to him by the second respondent calling upon him to finalise the estate and specifically to file the First and Final Liquidation & Distribution Account. The first respondent did not file the account and instead claimed that the estate had already been distributed by the deceased through an oral will and that there are boundary disputes which need to be attended to. The Applicant then filed the present application.

At the commencement of the hearing I dismissed the points *in limine* raised by the first respondent and the matter proceeded on the merits and I reserved judgment.

On the merits the applicant submitted that the application for the removal of an executor was being made in terms of the common law and not in terms of s117 of the Administration of Estates Act [*Chapter 6:01*]. The basis for the application being the executor's failure to execute his duties to lodge the Distribution Account within 6 months of registering the estate. Mr *Furidzo* argued that the second respondent sent a letter to the first respondent directing that he lodges the account and the applicant also sent a letter to the executor requesting that he finalises the account. However, all these communications were fruitless since up to date the executor has not yet complied.

It was applicant's further submission that there is no oral will which the first respondent mentions, if it exists the second respondent would have recorded it. Further, the executor has a conflict of interest in that he wants the property to be distributed to the male beneficiaries excluding the applicant (who is a female), therefore he cannot continue as an executor of the estate. Addressing the issue of the farm boundaries applicant contended that the issue of boundaries is irrelevant in *casu* since the executor is tasked to finalise the Distribution Account and the issue of boundaries will be attended to by the Surveyor General (if necessary). Applicant prayed for the granting of the application with costs.

In response it was first respondent's submission that from the Master's Report first respondent has complied with other obligations, that is, he has made efforts to make payment instalments and has invited all beneficiaries to a meeting to discuss the farm boundaries. It was in execution of his duties that he saw it first necessary to meet with the beneficiaries to discuss the farm boundaries. *Ms Moyo* admitted that the Distribution Account has not been finalised hence the applicant cannot argue that she has been excluded from the distribution of the estate.

The Law and Analysis

The present application is premised on the common law in which the grounds for the removal of an executor were stated in *Katirawu* v *Katirawu* & *2 Ors* HH58/07 at P 3 as follows:

> "It is trite that an executor of an estate may be removed from office at common law. The grounds for removing an executor from office at common law are inexhaustive as they are based on a broad principle."

In *Katsande* v *Katsande & Ors* HH113/10 at p 8 CHITAKUNYE J(as he then was) noted,

> "Where an executor lamentably fails to perform his duties according to the mandate given, can there be any good reason why he should remain in the office? In my view there is no good reason why first respondent should remain in the office. Any minute he remains in that office may be used for self aggrandizement/enrichment at the expense of the beneficiaries. It is only proper that he be removed from that office forthwith. I find support for this from the words of MAKARAU JP in *F. Katirawu v D. Katirawu and 3 others supra* at page 4 wherein after discussing a number of cases on the grounds for removal of an executor she said that:-
> 'it has been held that under Roman- Dutch Law, the court possesses inherent power to remove a trustee or administrator (even one appointed under a will), on the ground that his continuance in office will prejudicially affect the future welfare of the estate entrusted to him'."

Applying the law to the facts it is my finding that the executor had an obligation under s52 of the Administration of Estates Act to, within 6 months finalise the winding up of the estate through compiling a Distribution Account. In *casu*, the executor has not done so regardless of the various communications from the Master's Office directing that he compiles the Distribution Account. The first respondent has failed to perform his duties and I find no reason for his continuance in office. This failure to perform and discharge duties warrants his removal at common law. I also find authority in the case of *Nyandoro* v *Mukowamombe* HH 209/10 at p 6-7 wherein GUVAVA J (as she then was) held as follows:

> "The next issue to be determined is whether the first respondent should be removed as executor of the estate. It is trite that a beneficiary to an estate may apply at common law for the removal of an executor. It is not in dispute that being the surviving spouse of the deceased the applicant is a beneficiary of the estate. The basis upon which he can seek the removal of first respondent is if he can show that his continuance in office will not auger well for the future welfare of the estate and the beneficiaries. (see *Katirawu* v *Katirawu* HH 58/07) …"

The first respondent tried to explain his omissions and or neglect of duties by pointing that he called meetings to first discuss the farm boundaries with various beneficiaries. His legal practitioner also tried to lead unsubstantiated evidence from the bar to the effect that the boundary issue was resolved thereafter. I am not persuaded by this explanation because the issue of boundaries is not connected to the performance of his duties as an executor. The fact remains that the estate of the late Chatikobo has been idle for many years, which makes it necessary to remove the existing executor and have another executor appointed. In his report, second respondent stated that first respondent has not explained why he has not complied with his directive. This goes to support applicant's case.

It is for the foregoing that I grant the application as follows:

"l. The first respondent be and is removed as the executor of the estate of the late GARIRAYI CHATIKOBO (2593/24).

2. The second Respondent shall as soon as practically possible take the necessary steps to have an independent/neutral executor appointed.

3. The first Respondent shall pay costs of this application."

MHURI J:…..…….

Marume & Furidzo Legal Practitioners, Applicant's Legal Practitioners
Mudimu Law Chambers, First Respondent's Legal Practitioners